

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERIC CHANG LAGANDAON,

Petitioner

VS.

MICHELLE MARGARET LAGANDAON,

Respondent

) Case Number: FDI-14-782621

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT,
AND REIMBURSEMENT OF CHILD SUPPORT OVERPAYMENTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Eric Lagandaon (Father) and Respondent Michelle Lagandaon (Mother) married on
7/15/2003 and separated on 10/22/2014, for a marriage of 11 years and 3 months. The parties
have three children, Mya (DOB: 10/18/2003, age 22), Mason (DOB: 12/19/2008, age 17), and
Myles (DOB: 6/12/2012, age 14). Both parties are self-represented.
- 2) On 4/17/20215, a Dissolution Judgment was entered which provides in relevant part:
 - a. The parties have custody of the children according to a 2-2-5 schedule.
 - b. Mother shall pay Father guideline child support of \$1,442 per month.
 - c. The parties shall share equally uninsured medical expenses and education and special
needs of the children.
 - d. Mother shall pay Father \$1,102 per month in spousal support.

- 3) Now on for hearing is Mother's Request for Order filed 5/1/2026 asking to modify child support; terminate spousal support for Father; and reimburse Mother for child support overpayments for their oldest child Mya.
- 4) Per the Proof of Personal Service filed 6/17/2026, Father was personally served with Mother's Request for Order, the Tentative Ruling Instructions, and other moving papers on 6/16/2026.
- 5) On 6/24/2026, Father filed a Declaration stating that on 6/17/2026 paperwork was dropped at his gate when he was not home and that on 6/21/2026, Father notified Mother he was not properly served and was going to file a "motion to Quash Summons." Father's Declaration does not substantively respond to Mother's Request for Order.
- 6) Per the Proof of Service filed 6/24/2026, Father's Declaration was mailed to Mother on 6/23/2026.
- 7) Mother has not filed additional pleadings.

B. Findings and Order

- 1) The Court finds that Mother's moving papers were not served at least 16 Court days prior to the hearing as required by Code of Civil Procedure section 1005(b).
- 2) The hearing on Mother's Request for Order filed 5/1/2026 is hereby continued to **Thursday, 9/15/2026 at 9:00 AM in Dept. 404.**
- 3) No later than 7/17/2026, Mother shall file and serve (by mail is sufficient) a declaration which explains on what exact date she believes the duty to pay child support for Mya ended under Family Code section 3901. Mother shall also attach to her declaration a fully completed FL-157 (the version of this document attached to her Request for Order is incomplete).
- 4) Father shall file and serve his Responsive Declaration at least 9 Court days prior to the new hearing date. Father shall attach to his Responsive Declaration a fully completed FL-157.
- 5) Mother shall file and serve her Reply Declaration at least 5 Court days prior to the new hearing date.
- 6) The Court will prepare the Findings and Order After Hearing.